

		respondent of an opportunity to counter the argument.” (<i>American Drug Stores v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453 [citation omitted].) As such, the Court declines to consider this argument as Lee was deprived of the opportunity to address this argument.
7.	IRVINE WESTPARK PLAZA LLC VS. BRINKER RESTAURANT CORPORATION 2025-01473357	MOTION FOR TERMINATING SANCTIONS Defendant Brinker Restaurant Corporation dba Chili’s Grill and Bar’s Motion for Terminating Sanctions, or in the Alternative, Issue Evidentiary Sanctions and Monetary Sanctions in the Amount of \$5,922.50 against Plaintiff Irvine Westlake Plaza LLC is GRANTED in part. Code of Civil Procedure section 2023.030 provides, “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the Court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose monetary, issue, evidentiary, or terminating sanctions on one engaging in the misuse of the discovery process. Code of Civil Procedure section 2023.010 states, in part, “Misuses of the discovery process include, but are not limited to, the following: (g) Disobeying a Court order to provide discovery.” Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 12 [citation omitted].) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [citation omitted].) “A trial court has broad discretion when imposing a discovery sanction.” (<i>Ibid.</i>) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) “The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal.App.4th 377, 390 [citation omitted].) Plaintiff’s initial discovery responses stated, “Responding Party agrees to produce the requested documents to the extent that they exist and are within its possession and/or control.” (ROA 30 (Mtn., Ex. C.)

The Court's 5/12/25 order granting Defendant's motion to compel ordered Plaintiff to "serve further responses clearly stating whether it will comply in whole or in part and the grounds for any inability to comply, using the language required under the Code of Civil Procedure provisions [Code Civ. Proc. § 2031.210, 2031.220, 2031.230, 2031.240]. (ROA 39 at p. 2.)

Defendant contends Plaintiff disobeyed the Court's order by failing to serve Code-compliance responses.

On 6/9/26, Plaintiff served its amended responses. (Goodfried Decl., Ex. 3.) Plaintiff's amended responses state, "Responding Party agrees to produce the requested documents." Thus, while Plaintiff previously responded to state that it would produce documents "to the extent that they exist and are within its possession and/or control," Plaintiff amended to state only that it would produce the requested documents.

These responses, however, still do not comply with the relevant Code sections. Code of Civil Procedure section 2031.220 provides:

A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

To the extent Plaintiff's responses are a statement that it will comply with the particular demand they must include the additional statements set forth above, including a statement whether compliance will be in whole or in part. Additionally, to the extent Plaintiff includes general objections on the grounds of the attorney client or work product privilege and confidential or trade secret information, section 2031.220 provides Plaintiff's response must indicate "that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

It remains unclear from Plaintiff's responses whether any documents are being withheld, for example, on the basis of any of the asserted objections.

As Plaintiff served its amended responses within the time ordered by the Court and appears to have attempted to comply as ordered by amending its responses (though still deficient), the Court does not find terminating or evidentiary sanctions are warranted at this stage. The Court admonishes Plaintiff's counsel, however, that a continued

		failure to comply with the applicable Codes, now set forth twice by the Court, will result in more severe sanctions in the future. While Defendant also contends Plaintiff did not produce all responsive documents as indicated in Plaintiff's responses, whether Plaintiff in fact produced all documents is not an issue to be determined for purposes of this motion. Defendant's request for sanctions is granted in the reduced amount of \$2,672.50 based on 5.5 hours of counsel's time at \$475/hour plus a \$60 filing fee. Plaintiff to provide supplemental responses and pay sanctions within 30 days of today's date.
8.	PHAN VS. ABBOTT 2022-01262349	MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT MOTION FOR A NEW TRIAL No tentative ruling.
9.	POTTER VS. DICKER 2026-01563148	ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION Plaintiff Jeffery Potter's motion for a Preliminary Injunction is DENIED. The burden is on the party "seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction." (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) "A trial court considers two interrelated factors when determining whether to issue a preliminary injunction: '(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. [Citations.]' [Citation.] These two factors 'are described as <i>interrelated</i> factors because the greater the plaintiff's showing on one, the less must be shown on the other to obtain an injunction. [Citation.] The goal of this test is to minimize the harm that an erroneous interim decision would cause. [Citations.]' [Citation.]" (<i>Mae M. v. Komrosky</i> (2025) 111 Cal.App.5th 198, 213.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (<i>Butt v. State of California</i> (1992) 4 Cal.4th 668, 678 (<i>Butt</i>)). "A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim." (<i>Ibid.</i>) Plaintiff seeks a preliminary injunction (1) restraining Defendants Gerald Vance Dicker, GVD Commercial Properties, Inc. ("GVDCP"), Monte Mac No. 1 ("MM1"), Monte Mac No. 2